IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.4
CP(CAA)/3/230/AMR/2024 connected with
CA(CAA)/1/230/AMR/2024

IN THE MATTER OF:

Chandana Brothers Retail India Private Limited (Resulting Company -2)
…. Petitioner / Petitioner

Under Section: 2nd Motion petition u/s. 230 of the Act, 2013

Order delivered on 19.02.2026

CORAM:
SHRI UMESH KUMAR SHUKLA — **HON'BLE MEMBER (TECHNICAL)**
SHRI KISHORE VEMULAPALLI — **HON'BLE MEMBER (JUDICIAL)**

PRESENT:

In CP

For the Petitioners/Petitioners : Mr. Kailash Nath PSS, Adv.
Income Tax Department : Ms. Bokaro Sapna Reddy, Sr. Standing Counsel

ORDER

During the course of today's hearing, the learned Standing Counsel, on instructions, submitted that as on date there are no outstanding dues payable by the Transferor Company and Income Tax Department has no objection to the scheme provided that in the event any tax liability arises in future in relation to the Transferor Company, the same shall be borne and discharged by the Resulting Company No. 2, in accordance with law.

In response, the Counsel for the Petitioner Company undertook to file an appropriate affidavit affirming that the Resulting Company No. 2 shall be liable to discharge any present or future tax dues or statutory liabilities of the Transferor Company, if any, in accordance with law. Permission granted. List the matter on 26.02.2026 for further consideration.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (TECHNICAL)

Sd/-
(KISHORE VEMULAPALLI)
MEMBER (JUDICIAL)